

An Act

ENROLLED SENATE
BILL NO. 1439

By: Daniels and Thompson of the
Senate

and

Moore, Archer, Boles,
Bashore, Hays, and Steagall
of the House

An Act relating to oil and gas; creating the Energy
Security and Independence Act; providing short title;
providing legislative purpose; defining terms;
prohibiting covered civil liability actions;
construing provisions; providing for codification;
and providing an effective date.

SUBJECT: Oil and gas

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 46.5 of Title 52, unless there
is created a duplication in numbering, reads as follows:

A. This act shall be known and may be cited as the "Energy
Security and Independence Act".

B. The purposes of this act are:

1. To prohibit causes of action against those who lawfully
produce, manufacture, purchase for generation of electricity, or
sell fossil fuels and their trade associations, when this highly
regulated product functions as designed and intended;

2. To preserve lawful access to affordable, clean, and reliable fossil fuels that increase the productive capacity of this state and thereby bolster economic growth and its downstream benefits including, but not limited to, a tax base, jobs, and increased worker access to health care and housing; and

3. To prevent the use of lawsuits that seek the imposition of unreasonable burdens on the commerce of fossil fuels.

C. As used in this section:

1. "Covered civil liability action" means any civil action or proceeding, including any administrative proceeding, brought against a manufacturer, producer, processor, fractionator, refiner, storage operator, pipeline operator, transporter, or seller of covered product or any purchaser of covered product for the generation of electricity for legal or equitable relief of any kind arising out of or resulting from the production, manufacture, processing, fractionation, refinement, storage, transportation, marketing, sale, or use of covered product and such action or proceeding arises out of or relates to, or seeks relief of any kind arising out of or relating to, climate change, the alleged effects of climate change, or greenhouse emissions. Covered civil liability action includes, but is not limited to, any cause of action for fraud, misrepresentation, deception, or failure to warn, whether statutory or at common law, that purports to seek relief for climate change, the alleged effects of climate change, or greenhouse emissions. Covered civil liability action shall not include an action, proceeding, or administrative proceeding brought for unlawful acts arising out of:

- a. a violation of federal or state environmental law or regulation establishing a standard or operational practice governing the emission, discharge, or storage of covered product, or
- b. a violation of federal or state worker protection laws;

2. "Covered product" means a fossil fuel or fossil fuels;

3. "Engaged in the business" means any party that produces, manufactures, transports, sells, or is otherwise involved in intrastate, interstate, or foreign commerce of covered product and any party that devotes time, attention, or labor to the production, manufacture, transportation, or sale of covered product as a regular course of trade or business with the principal objective of livelihood or profit;

4. "Fossil fuel" or "fossil fuels" means natural gas, oil, coal, liquefied petroleum gas, natural gas liquids, refined products, and any product derived from such material;

5. "Manufacturer" means any person or entity that is engaged in the business of manufacturing covered product, including any person or entity that produces, processes, fractionates, refines, stores, or transports covered product for its lawful use and sale for profit;

6. "Person" means any individual, corporation, company, association, firm, partnership, society, joint stock company, or any other entity, including governmental entities;

7. "Producer" means any person or entity that is engaged in the business of exploration, production, or transportation of covered product or any of its constituent portions for its lawful use and sale for profit;

8. "Seller" means any importer, exporter, dealer, wholesaler, or retailer that is engaged in the business of selling covered product for profit;

9. "Trade association" means any corporation, unincorporated association, federation, business league, or professional or business organization not organized or operated for profit and no part of the net earnings of which inure to the benefit of any private shareholder or individual; and

10. "Transporter" means any person or entity that is engaged in the business of transporting, transferring, conveying, or moving covered product or any of its constituent portions for its lawful use and sale for profit.

D. 1. A covered civil liability action may not be brought in any court in this state.

2. No provision of this section shall be construed to create a public or private cause of action or remedy.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 10th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 20th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____